

D. F. YOUNG, INC.,

Complainant,
V.

NYK LINE (NORTH AMERICA), INC.,

Respondent.

RESPONDENT'S RESPONSE IN OPPOSITION TO
COMPLAINANT'S RULE 71(c) MOTION TO FILE A
REPLY IN SUPPORT OF ITS SEPT. 6, 2017 MOTION

1. DFY makes no showing of "extraordinary circumstances" as Required by Rule 71(c).
2. According DFY, the "extraordinary circumstances" are "material misrepresentations" by NYK. DFY thinks the misrepresentations are so bad that:

[DFY's] defense of the claims would be prejudiced by allowing [NYK's] material misstatements to go unchallenged.

DFY's Motion, p. 2, para. 4 (Bracketed text/emphasis are ours.).

3. One would think that DFY's case would rise or fall on its pending Rule 227 Exceptions rather than on a collateral motion. In any event, the prejudicial, material misrepresentations promised in DFY's Rule 71(c) Motion do not show up in its proposed Reply. *Id.*
4. DFY confuses the arguments of counsel with Detective Joe Friday's "Just the facts, Ma'am". Legal argument is opinion. It is adversarial. Its proper function is to construe, characterize, and criticize the other side's case. Few litigation attorneys ever agree with their opponent's take on things, but that kind of argumentative disagreement is all DFY offers to show prejudicial, material misrepresentations.
 - (a) According to DFY, NYK "mischaracterizes" the nature of DFY's Sept. 6th Motion. *DFY's Proposed Reply, p. 1 (Caption).* Since the Commission will have all DFY's papers before it, any argumentative 'mischaracterization' (which is

denied) will be readily apparent, so there is neither materiality nor prejudice even if it were a misrepresentation.

- (b) DFY argues that NYK "misconstrues" DFY's intended Exhibit 'A.'" *DFY's Proposed Reply, p. 1 (Caption)*. A misconception (i.e., a misinterpretation) is not a misrepresentation.
- (c) DFY describes an NYK argument as "petty" and "speculative" which, again, does not suggest anything prejudicial or misrepresentative. *DFY's Proposed Reply, p. 2 (last para.)*.
- (d) DFY dismisses as "false" NYK's argument that DFY never intended to include the omitted Exhibit A. *DFY's Proposed Reply, p. 2 (last para.)*. However:
 - (1) NYK's argument was presented as a logical inference drawn from facts set out in NYK's opposition that DFY has not denied.
 - (2) For one thing, DFY's omitted exhibit is offered to support a specific argument. However, DFY never made that argument to the ALJ or even referred to the "omitted" exhibit in its papers below, so it is logical to infer that DFY's omitted exhibit rationale is an after-thought. Even if NYK's inference turns out to be wrong, that by itself would not make it a misrepresentation.
- (e) Citing to para. 5 of its Sept. 6th Motion, DFY argues that it did not say that NYK's tariff pages were included as part of NYK's Answer to DFY's Request for Admissions. *DFY's Proposed Reply, p. 3, fn. 2*. NYK begs to differ.

- (1) In its Sept. 6th Motion, DFY attached an "Exhibit A" which it described only as "Respondent's Answers to Complainant's Requests for Admissions." *See, DFY's Sept. 6th Motion, para. 3.*
- (2) That Exhibit A includes not just pages from NYK's RFA Answer, but also Bates stamped pages from NYK's Tariff—making it appear that those Bates stamped pages were part of NYK's RFA Answer. In fact no such pages were ever included in NYK's RFA Answer as NYK's Opposition Response explains and DFY now admits.
- (3) Not only did DFY never clarify that point, it gave exactly the opposite impression. The very beginning and very end of its Sept. 6th Motion para. 5 reads:

The actual/correct Exhibit "A" contained NYK's admission ... along with relevant portions of NYK Tariff 156.

If there was a material misrepresentation here, it was not by NYK.

- (f) DFY says there is "no merit" to the following four NYK's arguments made in its opposing Response to DFY's Sept. 6th Motion:
- *Reply, pg. 3, last para.* (The Tariff is irrelevant),
 - *Reply, pg. 4* (Sept. 6th The Motion is too late),
 - *Reply, pg. 5* (Insufficient reason to grant Sept. 6th Motion),
 - *Reply, pg. 6* (1st sentence) (Material change in law or facts needed to allow a case to be reopened).

Each of the foregoing involves a legal argument. None qualifies as a misrepresentation of fact. Moreover, if an argument is found to lack merit, that, by itself, would not make it a material misrepresentation. Otherwise the

losing side in every motion, trial, or appeal would be guilty of material misrepresentations.

(g) DFY refers to matters that NYK "overlooked" in its Response to DFY's Sept.

6th Motion:

- *Reply, pg. 3, last para.* (NYK overlooks what was intended to be part of Exhibit A),
- *Reply, pg. 4, 2d full para.* (NYK overlooks 46 C.F.R. 502.230),
- *Reply, pg. 8, 1st sentence* (NYK overlooks Rule 230).

The last two again involve issues of law rather than representations of fact. Furthermore, merely 'overlooking' something is nobody's definition of a misrepresentation.

(h) DFY takes a full page to argue why the Tariff and bill of lading terms are relevant, saying that NYK "attempts to create confusion." *DFY's Proposed Reply, pp. 6-7.* However, arguments as to the relevance of documents again raise issues of law and do not constitute misrepresentations no matter how the Commission rules.

(i) DFY takes another page to argue that its Sept. 6th Motion is timely and not barred. *DFY's Proposed Reply, pp. 7-8.* No material representation by NYK is blamed for any untimeliness.

(j) In footnote 3 on page 7, DFY argues why the Initial Decision was wrong on a specific issue. No material misrepresentation by NYK is shown as the reason.

(k) On pages 8-9, DFY argues why good cause exists to grant its Sept. 6th Motion. The so-called "good cause" is not tied to any misrepresentation by NYK.

5. We do not think the *Verucci* case relied upon by DFY was meant to apply here. See, *DFY's Proposed Reply*, pp. 6-7.

(a) *Verucci* involved a pro se complainant who claimed "health problems and frequent hospital stays" for his inadequate response to the ALJ's orders. *Verucci Motorcycles, LLC v. Senator Int'l Ocean*, p. 1 (Docket No. 06-05) (F.M.C. 05/07/2008).

(b) In *Verucci*, there was no initial decision by the ALJ as there is here. So *Verucci* never had a chance to make his case. Consistent with the "more lenient" treatment shown pro se litigants, the Commission determined to do equity rather than leave *Verucci* "to be cut off from an opportunity to be heard." *Id.* at p. 4.

None of those factors exist here.

6. NYK submits that if the showing made in DFY's proposed Reply qualifies as "extraordinary circumstances," then that phrase no longer has any meaning. The argued existence, prejudicial effect, and materiality of NYK misrepresentations [*DFY's Motion*, p. 2, para. 4] is more hyperbole than a reasoned conclusion.

7. FY's Rule 71(c) Motion should be denied.

Dated: White Plains, NY

Respectfully submitted,

October 31, 2017

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By:

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